

UNITED STATES DISTRICT COURT, WESTERN DISTRICT OF MICHIGAN

ANDREW J. PIGORS, Plaintiff, v. HON. JENNY L. MCNEILL, et al., Defendants.

Case No. TBD-2025

<!-- DISCOVERY PLAN Pigors v. McNeill et al. United States District Court,
Western District of Michigan FRCP 26, 30, 33, 34, 36 PRIVILEGED --
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DISCOVERY PLAN

Pigors v. McNeill et al. -- WDMI Case No. [TBD]

I. FRCP 26(a)(1) -- INITIAL DISCLOSURES

A. Plaintiff's Initial Disclosures (Due within 14 days of FRCP 26(f) conference)

1. Persons Likely to Have Discoverable Information (FRCP 26(a)(1)(A)(i))

#	Name	Subject Matter	Contact Information
1	Andrew J. Pigors (Plaintiff)	All facts alleged; custody proceedings; parenting time denial; constitutional violations	[ADDRESS]
2	Tiffany A. Watson (Defendant)	Custody proceedings; ex parte motions; parenting time; false allegations	[ADDRESS per state records]
3	Pamela Barnes, P55406 (Defendant)	Ex parte filings; legal strategy; communications with court; MRPC violations	[Attorney registration address]
4	Hon. Jenny L. McNeill (Defendant)	Judicial decision-making; ex parte order rationale; case management	14th Circuit Court
5	FOC Case Worker(s)	FOC recommendations; investigation methodology; communications with parties	14th Circuit Court FOC
6	Court Clerk / ROA Custodian	Authentication of court records; order entry procedures	Muskegon County Clerk
7	L.D.W.'s GAL (if appointed)	Best-interest assessment; communications with court	[If applicable]
8	Law enforcement witnesses	PPO enforcement; any incident reports	Muskegon PD, NSPD
9	CPS investigators	False CPS reports; investigation findings	MDHHS
10	Child development expert (to retain)	Harm from 571+ day separation; attachment theory	[To be identified]

2. Documents and ESI (FRCP 26(a)(1)(A)(ii))

#	Category	Location
1	Complete Register of Actions (both cases)	Muskegon County Circuit Court
2	All 55 orders entered in Case 2024-001507-DC	Court records
3	All 24 ex parte orders with underlying motions	Court records
4	All PPO orders (Case 2023-5907-PP)	Court records
5	FOC reports and recommendations	FOC files
6	Father's motions (6 dismissed + all others)	Court records / Plaintiff's files
7	Hearing transcripts (all hearings)	Court reporter records
8	Email correspondence re case	Plaintiff's files
9	Text messages between parties	Plaintiff's files
10	Statistical analysis of ex parte rate	Plaintiff's compilation
11	LitigationOS database evidence	Plaintiff's files

3. Damages Computation (FRCP 26(a)(1)(A)(iii))

Category	Computation	Supporting Documents
Compensatory -- Loss of companionship	571+ days ? per diem	Comparable jury verdicts; expert testimony
Emotional distress	Documentation of anguish	Medical records; counseling records; testimony
Lost income	Income records; lost opportunity	Tax returns; employment records
Legal costs	Documented expenses	Filing fees; certified copies; travel
Punitive	Multiple of compensatory	Pattern evidence; willfulness evidence

4. Insurance (FRCP 26(a)(1)(A)(iv))

Plaintiff is not aware of any insurance agreement under which an insurance company may be liable for any part of any judgment.

II. FRCP 33 -- INTERROGATORIES (30 Maximum Per Party)
A. Interrogatories to Defendant McNeill

* State the basis for each ex parte order entered in Case No. 2024-001507-DC, including the specific facts relied upon to satisfy MCR 3.207(C)(2).

* For each of the 24 ex parte orders entered without notice to Plaintiff, identify: (a) who requested the ex parte order; (b) what verified statement of facts was submitted; (c) what finding of immediate and irreparable injury was made.

- * Describe the reasons why five (5) separate ex parte orders were entered on August 8, 2025, and why notice to Plaintiff was not required before entry.
- * State whether you had any ex parte communications with Defendant Watson or Defendant Barnes regarding the custody or PPO cases outside of formal proceedings. If so, describe the date, nature, and substance of each communication.
- * Describe the factual and legal basis for the August 23, 2024 Final Judgment, including the analysis of each of the twelve MCL 722.23 best-interest factors.
- * State the reasons why Plaintiff's six (6) pending motions were dismissed without hearing or adjudication in the August 23, 2024 Final Judgment.
- * Identify all evidentiary hearings conducted in Case No. 2024-001507-DC at which sworn testimony was taken and subject to cross-examination.
- * Describe the factual basis for denying Plaintiff's motion for disqualification under MCR 2.003(C)(1).
- * State whether the 14th Circuit Court has any policy, custom, or practice regarding the frequency with which ex parte orders may be entered in custody proceedings.
- * Identify all training you received regarding due process requirements for ex parte orders in family court proceedings.

B. Interrogatories to Defendant Watson

- * Identify each ex parte motion you filed (directly or through counsel) in Cases No. 2024-001507-DC and 2023-5907-PP, including the date, substance, and whether a verified statement of facts was submitted.

- * State the factual basis for each allegation made in the August 8, 2025 ex parte motion, including any evidence supporting the allegations.
- * Describe all communications you had with Defendant Barnes regarding the filing of ex parte motions, including dates, methods, and substance.
- * State whether you had any communications with Judge McNeill outside of formal court proceedings regarding either case. If so, describe each communication.
- * Identify each CPS report you filed regarding Plaintiff, including the date, allegations, and outcome of any investigation.
- * Describe each instance in which you withheld L.D.W. from Plaintiff's court-ordered parenting time, including the dates and reasons.
- * State your understanding of why parenting time was suspended on August 8, 2025, and identify all evidence you relied upon.
- * Describe the financial benefit, if any, you received from the suspension of Plaintiff's parenting time (e.g., increased child support, sole decision-making authority).

C. Interrogatories to Defendant Barnes

- * State your factual and legal basis for each ex parte motion filed on behalf of Defendant Watson, including your analysis of whether the MCR 3.207(C)(2) standard was met.
- * Describe all communications with Judge McNeill regarding the custody or PPO cases, including ex parte communications.

- * Identify any communications or coordination between you and Judge McNeill's chambers regarding the timing or content of orders to be entered.
- * State whether you believed the August 8, 2025 ex parte motion met the legal standard for ex parte relief, and describe the factual basis for that belief.
- * Describe any concerns you had regarding the constitutionality of the ex parte orders entered in this case.

D. Interrogatories to Defendant Muskegon County

- * Identify all policies, procedures, and training materials regarding the entry of ex parte orders in family court proceedings in the 14th Judicial Circuit.
- * State whether the County monitors the frequency of ex parte orders by individual judges.
- * Describe any complaints received regarding Judge McNeill's handling of family court cases in the last five (5) years.
- * Identify all training provided to family court judges regarding due process requirements, ex parte orders, and parental rights since 2020.
- * Describe the County's policy for judicial reassignment when a litigant files a motion for disqualification.
- * State whether the County has any oversight mechanism for identifying patterns of asymmetric treatment in family court proceedings.
- * Identify the FOC employees who worked on Case No. 2024-001507-DC, and describe their roles, qualifications, and actions taken.

III. FRCP 34 -- DOCUMENT REQUESTS

A. Requests to All Defendants

- * All documents relating to Case No. 2024-001507-DC and Case No. 2023-5907-PP.
- * All ex parte motions, orders, and supporting documents filed or entered in both cases.
- * All communications (written, electronic, or recorded) between any Defendants regarding either case.
- * All FOC reports, recommendations, and work product for both cases.

B. Requests to Defendant McNeill / Court

- * The complete Register of Actions for both case numbers.
- * All hearing transcripts, audio recordings, and video recordings from both cases.
- * All bench notes, case management notes, or internal memoranda regarding both cases.
- * The assignment and reassignment history for both cases.
- * Any communications between chambers and any party outside of formal proceedings.

- * All policies and procedures for the entry of ex parte orders in the 14th Circuit Family Division.

C. Requests to Defendant Watson

- * All text messages, emails, and written communications with Defendant Barnes regarding the cases.
- * All text messages, emails, and written communications with Judge McNeill or court staff.
- * All documents supporting the allegations in each ex parte motion.
- * All CPS reports filed and investigation results received.
- * Documentation of all instances of withholding L.D.W. from Plaintiff's parenting time.

D. Requests to Defendant Barnes

- * Complete case file for Defendant Watson's representation in both cases.
- * All communications with Judge McNeill or her chambers.
- * All billing records reflecting work on ex parte motions and other filings.
- * All drafts of ex parte motions and orders.

E. Requests to Defendant Muskegon County

- * All policies, training materials, and guidelines for family court ex parte orders.
- * Statistical data on ex parte orders by judge for the last five years.
- * All complaints or grievances regarding Judge McNeill.
- * FOC case files for both case numbers.
- * Training records for FOC employees assigned to this case.

IV. FRCP 30 -- DEPOSITION PLAN

A. Priority Depositions

#	Deponent	Duration	Priority	Key Topics
1	Tiffany Watson	7 hours	HIGH	Ex parte motions; false allegations; withholding child; communications with court
2	Pamela Barnes	7 hours	HIGH	Ex parte filing strategy; communications with chambers; MRPC compliance
3	FOC Case Worker(s)	4 hours each	MEDIUM	Investigation methodology; recommendations; communications with parties
4	Court Clerk / ROA Custodian	2 hours	MEDIUM	Order entry procedures; authentication of records
5	County Administrative Officer	4 hours	MEDIUM	Policies; training; oversight; complaints received
6	Expert -- Child Development	4 hours	LOW	Harm from separation; attachment damage

Note: Deposing Judge McNeill may be limited by judicial privilege. Consider FRCP 30(a)(2) motion for court approval.

B. Deposition Schedule

| Phase | Timeframe | Depositions | |-----|-----|-----| | Phase 1 (Fact
Discovery) | Months 1-3 | Watson, Barnes, FOC | | Phase 2 (Institutional) | Months 3-5 |
County officer, Court clerk | | Phase 3 (Expert) | Months 5-7 | Expert witnesses |

C. Deposition Logistics

- * All depositions to be taken in the Western District of Michigan or by agreement.
 - * Court reporter and videographer for all depositions.
 - * IFP status should cover court reporter fees under 28 USC Section 1915.
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V. FRCP 36 -- REQUESTS FOR ADMISSION

A. Requests to Defendant McNeill

- * Admit that 24 of the 55 orders entered in Case No. 2024-001507-DC were entered on an ex parte basis.
- * Admit that all 24 ex parte orders were entered without prior notice to Plaintiff.
- * Admit that five (5) separate ex parte orders were entered on August 8, 2025.
- * Admit that no evidentiary hearing with sworn testimony subject to cross-examination was conducted before entry of the August 23, 2024 Final Judgment.

* Admit that Plaintiff's six (6) pending motions were dismissed without hearing in the August 23, 2024 Final Judgment.

* Admit that the August 8, 2025 ex parte order did not contain a verified statement of facts.

* Admit that Plaintiff has been denied all parenting time with L.D.W. since August 8, 2025.

* Admit that no finding of clear and convincing evidence was made before suspending Plaintiff's parenting time.

B. Requests to Defendant Watson

* Admit that you filed an ex parte motion to suspend Plaintiff's parenting time on or about August 8, 2025.

* Admit that the ex parte motion did not include a verified statement of facts.

* Admit that you withheld L.D.W. from Plaintiff's court-ordered parenting time between March 26 and May 2, 2024.

* Admit that you filed one or more CPS reports regarding Plaintiff.

* Admit that the CPS investigation(s) did not result in findings of abuse or neglect against Plaintiff.

* Admit that Plaintiff has had no contact with L.D.W. since August 8, 2025.

C. Requests to Defendant Barnes

- * Admit that you drafted and filed the August 8, 2025 ex parte motion.
- * Admit that the ex parte motion did not include a verified statement of facts demonstrating immediate and irreparable injury.
- * Admit that you had communications with Judge McNeill or her chambers regarding the cases outside of formal proceedings.

D. Requests to Defendant Muskegon County

- * Admit that the County does not monitor the frequency of ex parte orders by individual judges.
- * Admit that the County has no policy setting a maximum threshold for ex parte orders in custody proceedings.
- * Admit that the County did not provide training specifically addressing due process requirements for ex parte orders in family court during the period 2023-2025.

VI. DISCOVERY TIMELINE

Phase	FRCP Deadline	Action Items	----- ----- -----	FRCP 26(f)
Conference	Per scheduling order	Meet and confer with Defendants; propose discovery plan		
Initial Disclosures	14 days after 26(f) conference	Exchange FRCP 26(a)(1) disclosures		
Written Discovery	Months 1-3	Serve interrogatories, document requests, requests for admission		
Responses Due	30 days after service	Review responses; identify deficiencies		

Meet and Confer on Disputes | As needed | Attempt to resolve discovery disputes informally |
| **Motion to Compel** | If needed | FRCP 37 motion for any unjustified refusal | | **Fact**
Depositions | Months 3-6 | Complete fact witness depositions | | **Expert Disclosures** | Per
scheduling order | FRCP 26(a)(2) expert reports | | **Expert Depositions** | Per scheduling order |
Depose opposing experts | | **Discovery Cutoff** | Per scheduling order | All discovery completed
|

*Discovery Plan Date: 2026-03-04 Status: DRAFT -- To be finalized per Court's
scheduling order*